

AGREEMENT BETWEEN
BROOKWOOD SCHOOL DISTRICT 167
BOARD OF EDUCATION
AND THE
GLENWOOD EDUCATION
ASSOCIATION

2021 - 2024

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ARTICLE I RECOGNITION

This Agreement is made and entered into by and between the Board of Education, School District 167, Cook County, Illinois, (hereafter referred to as the Board) and the Glenwood Education Association, affiliated with the IEA and NEA (hereafter referred to as the Association) for the purpose of recognizing the Association as the sole negotiating agent for all regularly employed, full and part-time certificated/licensed teaching.

- A. The parties agree that the provisions of this Agreement will be applied in good faith.
- B. The Board agrees not to negotiate with any other teachers' organization, other than the Association for the duration of this Agreement. It is understood and agreed, however, that the Board, Administration, individual employees or group of employees in the District retain their right to discuss problems relating to educational matters which are beyond the scope of salaries and terms covered by the Agreement.

ARTICLE II NEGOTIATION PROCEDURES

- A. The parties will commence bargaining for a successor Agreement as per the Illinois Educational Labor Relations Act and its Rules and Regulations, but in no case later than May 30 of the final year of the Agreement, unless a recognition petition is pending.
- B. Any alleged violation of this Article may be remedied by either an unfair labor practice charge, or a grievance, but not both.

ARTICLE III ASSOCIATION AND TEACHER RIGHTS

A. Right to Organize

Members of the bargaining unit will have the right to organize or not to organize, join or not to join, to participate or not to participate in professional negotiations with the Board through representatives of their own choosing.

B. Board Meetings

1. The Board will place on the agenda of each regular Board meeting for consideration any matters brought to its attention by the Association so long as these matters are made known in writing/email to the Superintendent six (6) working days prior to the regular meeting, provided that such matters may not constitute the bringing or processing of grievances or professional negotiations or collective bargaining proposals.
2. A staff member or group of staff members or the Association, who wish to address the Board regarding professional problems which are not grievances and which do not constitute negotiations must follow these guidelines:
 - a. Consult with the principal of the school and if the professional problem is not solved, take it to the Superintendent.
 - b. Consult with the Superintendent and if the problem is not solved to the satisfaction of the member or group of staff members, take it to the Board.
3. The School Board agrees to make available to the Association, in response to reasonable requests, all available public information already compiled concerning the financial resources of the District such as, but not limited to, annual financial reports and audits, annual budgets, agenda and minutes of all Board meetings and Treasurer's reports. Nothing herein shall require the Board's administrative staff to research and assemble information.
4. The Association will furnish or make available for reproduction, copies of any pertinent information as reasonably requested by the Board or its representatives.
5. The President of the Association will be provided with an electronic copy of the agenda for each Board meeting at least forty-eight (48) hours prior to the meeting. In case of a special board meeting, reasonable effort will be made to notify the President of the Association or his/her designee prior to said meeting. An electronic copy of the approved minutes will be provided the President of the Association within forty-eight (48) hours after the meeting at which they were approved.

ARTICLE III ASSOCIATION AND TEACHER RIGHTS CONTINUED

C. Parent Meetings

When parents of a teacher's current students are to visit a teacher's class or desire to meet with the teacher, the administration will make every attempt to schedule the visit or meeting for a day and time which is agreeable to the teacher and outside of his or her instructional time or duty free lunch unless waived by mutual agreement.

No teacher shall be required to meet with a parent and administrator without first being told of the purpose of the meeting.

D. Use of Buildings

1. Upon at least 24 hours notice to and with approval of the building principal, except in the case of emergency, the Association will have the right to use school buildings for meetings and to transact official Association business on school property provided that such business does not interfere with or interrupt school operations or previously scheduled events. When special custodial service is required the Board may make a reasonable charge for this service.
2. Bulletin board space will be provided for the use of the Association in each school building for posting notices of activities and other matters of Association concern. The regular District interschool mail service will be made available to the Association for communication to teachers. The Superintendent will receive copies of materials prior to distribution.
3. The Association will have the right to use, but not to remove from the school building, school equipment including current technologies when such equipment is not otherwise in use, with prior approval, subject to board policy provided the Association pay for the cost of all materials and supplies consumed in such use and for damages incident to such use.

E. Association Representative

When an employee is required to appear before the Board concerning any matter which could adversely affect the employee's employment or salary, the employee will be so informed in writing and entitled to have an Association representative present.

Further, when an employee is required to appear before the Board, except in cases of emergency, he/she will be given forty-eight (48) hours prior notice of the reasons for such meeting.

F. Personal Cell Usage

Personal phone usage will be confined to lunch breaks, planning time related to School District business and emergencies only.

ARTICLE III ASSOCIATION AND TEACHER RIGHTS CONTINUED

G. Contracts Dispersal

At the Association's expense, newly hired teachers will receive a copy of the current agreement between the Association and the Board. Copies of the Agreement will be forwarded to newly hired teachers with the employment contract.

H. Personnel File

Each teacher will have the right upon request and 24 hour notice, to review the contents of his/her own personnel file. Job and school references will be considered confidential and will not be available for inspection by the teacher. Each teacher will have the right to insert in his/her official file, materials relevant to his/her service in the school district and his/her qualifications in general. Neither a teacher's file nor any of its contents will be copied or removed without the written consent of the teacher, unless otherwise required by law. Nor will such information in substance, digest, extract form be given in response to specific inquiries without the teacher's written consent with the exception of matters of public record and as otherwise required by law. When a teacher's file or a portion thereof is copied and/or released without the teacher's written consent as herein provided, the teacher shall be given a copy of the request and shall be notified of the release. The Board and/or the Administration will not be held responsible for an inconvenience to a teacher which is caused by the teacher's own failure to provide such written consent. A representative of the Association may, at the teacher's request, accompany the teacher to review his/her personnel file.

Each teacher's personnel file will contain the following minimum items of information: 1) Required medical information, 2) All teacher evaluation reports, 3) Copies of annual contracts or notifications of re-employment, 4) Copies of supplemental duty contract, and 5) Any information in the District's possession which could be used as a basis for discipline or re-employment, demotion, promotion, assignment, transfer or for determining the salary of a teacher.

Teachers have the right to place written response to any materials in their personnel file with which they disagree or which they wish to clarify.

I. Membership Dues

1. Any teacher who is a member of the Association or who has applied for membership may sign and deliver to the Board an assignment authorizing deduction of membership dues in the Association, IEA and NEA, prior to September 15, which authorizations may be revoked at any time. Pursuant to such authorizations, the Board will deduct local association dues in September and then each month will deduct one-eighth (1/8) of state and national dues from the salary check of the teacher for eight months, with the first deduction in October and the last in May of each year. Deductions for teachers employed after the commencement of the school term will be so pro-rated as to complete payments

ARTICLE III ASSOCIATION AND TEACHER RIGHTS CONTINUED

by the following May. Special arrangements for interrupted service may be worked out between the Board and Superintendent.

2. With respect to all sums deducted by the Board pursuant to authorization of the employee for membership dues, the Board agrees to remit promptly to the treasurer of the Association that portion allocated to the Association and to remit the balance for both the NEA and IEA to the Illinois Education Association, 100 East Edwards Street, Springfield, Illinois, 62704. Such remittance shall be accompanied by a list of teachers for whom such deductions have been made. The Association will from time to time advise the Board of all members of the Association in good standing and furnish any other information needed by the Board to fulfill the provisions of this article.
3. Upon appropriate written authorization from the teacher, which authorization may be revoked in writing at any time, the Board will deduct from the salary of such teacher, contributions and payment for annuities, savings bonds, and credit unions. Changes, other than revocations, can be made the first two weeks of the school year or the first two weeks of January. Exceptions would require approval of the Superintendent.

J. Contract Printing

The Board will assume costs involved up to the final preparation for printing of this document. Within four (4) weeks from the date officers of the respective parties sign the Agreement, the Board will have the contract printed and ready for distribution. The Association will reimburse the Board for printing costs of copies it requests on a per copy basis.

K. Association Leave Time

In the event that the Association desires to send representatives to local, state, or national conferences or on other business pertinent to the Association affairs, these representatives (no more than 4 at the IEA Convention) will be excused without loss of salary, providing the Association reimburse the District for the cost of the substitute(s). In any school term no more than ten (10) days in the aggregate may be used for such purpose and, further providing, the frequency of excused leave does not impair the quality of classroom instruction and that a written request for leave has been submitted to the Superintendent for approval. If special circumstances arise which necessitate the use of more than 10 days, the GEA will submit a request in writing to the Superintendent for special consideration.

L. Employee Discipline

The Board, the Superintendent, or her/his designee (administrator), may progressively discipline an employee through oral reprimands, written reprimands, suspensions with or without pay, docking of pay, or termination. Nothing contained herein prevents the

ARTICLE III ASSOCIATION AND TEACHER RIGHTS CONTINUED

skipping of disciplinary steps where determined appropriate in the sole discretion of the Board/administrator.

An employee may have a representative of the Association present at any meeting which could result in disciplinary action.

No regular employee will be terminated without first being given the specific reasons for the termination in writing, and the opportunity to meet with the Superintendent, along with an Association Representative, to discuss the reasons for the termination.

However, nothing herein shall be construed to permit the employees to refuse to attend a required appearance before the Board, Superintendent or administrator.

Nothing contained herein shall establish a just cause standard for discipline.

M. Dress Code

Teachers will wear appropriate professional dress specific to their position.

ARTICLE IV CALENDAR AND TEACHING HOURS

A. School Calendar

The Administration must consult with the Association and Calendar Committee in the preparation of the calendar or changes that need to take place mid-year in accordance with Section 10-19 of the School Code. The calendar committee shall consist of up to four (4) administrators and up to four (4) Glenwood Education Association members. The Superintendent shall appoint administrators on the committee. The Glenwood Education Association President shall appoint Glenwood Education Association members. The school calendar will include 5 early dismissal days for conference, programs, or inservice workshops and 5 institute days or parent/teacher conferences in accordance with the Illinois School Code. The calendar will state which days are possible make-up days.

The school calendar will include no more than 185 teacher attendance days, of which five are to be emergency days. If no emergency days are used, the five emergency days in the calendar will not be attendance days for teachers. The work year for teachers will not exceed 180 days.

1. Definitions

Half day = 11:30 student dismissal

Early Release = 2:00 student dismissal

Institute Day = Non-student attendance day

2. Early Release Days (2 p.m. Dismissals)

Seven (7) 2:00 p.m. dismissal days during the school year will be scheduled to allow release time for, but not limited to the following:

- Four (4) 2:00 p.m. dismissal days during the school year will be scheduled in collaboration with the GEA and administration to allow teachers to work on end of quarter grades or principal approved activity.
- Teachers are required to attend one (1) annual Open House from 5:30 p.m. – 7:30 p.m. (no later than two weeks from the beginning of the school year, one per building). Teachers are expected to work their normal schedule day, and attend school improvement activities, seven and one quarter (7¼) hours, when other buildings are hosting their Open House.
- The Superintendent may schedule additional such days at his/her discretion (30 minute lunch).

3. Half Days and Institute Days

- 5 Institute days = 2 parent teacher conferences (11:00 a.m. to 7:00 p.m.) and 3 institute days (8:00 a.m. – 3:15 p.m.)
- Half days for professional development and Illinois State Board of Education (ISBE) mandatory training as determined by District (11:30 a.m. 3:15 p.m.)

ARTICLE IV CALENDAR AND TEACHING HOURS CONTINUED

B. Teaching Hours

1. A teacher's normal scheduled day shall not exceed 7¼ hours.
2. Teachers are required to attend up to two (2) evening parent conference sessions which may not extend past 8:00 p.m.
3. In addition, teachers will conference with parents of children who need assistance. Such conference may be scheduled by the teacher, parent, student or Principal with all parties mutually agreeing upon the time.
4. Teachers will be required to attend three (3) evening school function (i.e., Family Night, STEM Fair, Math Night, Reading Night, Fine Arts Night, musical performances, Curriculum Night, etc.) in accordance with the published school calendar.
5. In general, faculty meetings beginning at 7:45 a.m. may be held up to twice per month or as determined by the Principal in case of emergency.
6. Teachers will remain for a sufficient period after the close of the teacher school day to attend to meetings called by principals, and/or consultations with parents when scheduled directly with the teacher or the principal; however, on Fridays or on days preceding holidays or vacation, the teacher may end their day as determined by the building administration based upon student safety with exceptions of those teachers on rotating bus duty.
7. Teachers will attend up to one staff meeting per quarter at the end of the school day called by principals not to extend past 5:00 p.m. for the purpose of professional development. These meetings will be set by the second week of school and published. A committee will be established and will play a key role in the development of professional development District wide. Every effort will be made to have at least one representative from each building on the committee.
8. Every teacher will be allowed a duty-free lunch period as per the Illinois School Code.
9. Teachers who are assigned a class other than supervised study or detention which requires them to forfeit their preparation period or lunch period will receive compensation at the assigned extra duty hourly rate. Volunteers shall be sought prior to the assignment. Instructional coaches and SEL teachers shall be assigned classes before other teachers if there are no volunteers. If a teacher is assigned to substitute, these assignments shall be done on a rotating basis.
10. Every teacher will have a minimum of 200 minutes per 5 day week of planning time scheduled during the regular student attendance day. Every effort will be

ARTICLE IV CALENDAR AND TEACHING HOURS CONTINUED

made to arrange this planning time in blocks of at least 15 consecutive minutes per block.

11. Any licensed tenured teacher asked to step into an administrative role for the normal school day shall receive double extra duty rate compensation. This will be done upon absence of the principal to allow a second in command to perform administrative duties. This rate shall only apply for the teacher outside their normal daily hours (before school for a maximum one (1) hour, after school for a maximum of one-and-a-half (1.5) hours, and plan period for 45 minutes).

ARTICLE V PROFESSIONAL QUALIFICATIONS AND ASSIGNMENTS

- A. The District shall endeavor to provide to each teacher a written notice of his/her tentative assignments for the forthcoming year sixty (60) days preceding the first day of the new school term but no later than 30 calendar days before the start of the school year. In the event changes in such assignments are proposed, the teacher affected will be notified promptly. The Association will be notified and the teacher will be allowed to resign if such change is not acceptable to him/her.
- B. The Board will first seek volunteers from the certified staff to fill extra duty positions. In the event that sufficient volunteers who are certified cannot be recruited for such extra duty positions, then the Board will have the right to require teachers who are qualified to take such positions.
- C. In filling positions held by teachers in the summer school program other than the director, priority shall be given to properly certificated teachers regularly employed in District 167.

ARTICLE VI TEACHING CONDITIONS AND STAFF FACILITIES

- A. The parties agree that the following limits on class size represent desired objectives. The utilization of facilities and personnel and future planning of construction and recruiting of staff will move toward these objectives.

The maximum pupil population of each classroom teacher should be 24 students for kindergarten, first grade, second grade, third grade, and fourth grade, and a maximum of 27 students for fifth through eighth grade.

- B. Instructional staff members may submit requests for instructional materials and supplies for the following term at a time to be designated by the administration. Such requests are advisory only and will not be deemed to be binding upon the Board. The determination of the Board in all instances will be final and not subject to the grievance procedure or to review by any other person or organization.
- C. The Board agrees to make available for each building, digital copying facilities to aid teachers in the proper execution of their assigned duties.
- D. Work space will be provided for teachers.
- E. A staff lounge, which is furnished and cleaned daily by custodians, will be provided in each building.
- F. A teacher who believes that he/she is working under unsafe or hazardous conditions or is being required to perform tasks which he/she believes endangers his/her health or safety will report such conditions to the principal who will report it to the Superintendent. The District Superintendent will take such action as he/she deems to be appropriate in accordance with School Code.
- G. The Board will provide a secure place for personal items.

ARTICLE VII VACANCIES, TRANSFERS, AND PROMOTIONS

A. Vacancies and Transfers

The Superintendent will send electronically to the President of the Association, a notice of all vacancies, including vacancies in K-8 teacher positions as they occur or as they are anticipated. Notice of vacancies will be posted on the District's website along with a group email for each vacancy as it occurs. No vacancy will be filled permanently until such vacancy will have been posted internally for at least five (5) days. External posting will occur after the five (5) day internal posting. Application for such vacancy must be received by the Administration within five (5) days after the posting. Temporary appointments will not extend beyond the school year in which they are made.

- B. The school district's selection of a candidate for a new or vacant teaching position not otherwise required to be filled pursuant to Section 24-12 of the School Code must be based upon the consideration of factors that include without limitation certifications, qualifications, merit and ability (including performance evaluations, if available), and relevant experience, provided that the length of continuing service with the school district must not be considered as a factor, unless all other factors are determined by the school district to be equal. The school district's decision to select a particular candidate to fill a new or vacant position is not subject to review under grievance resolution procedures adopted pursuant to subsection (c) of Section 10 of the Illinois Educational Labor Relations Act, provided that, in making such a decision, the District does not fail to adhere to procedural requirements in a collective bargaining agreement relating to the filling of new or vacant teaching positions.

ARTICLE VIII RETIREMENT

A. Retirement Program

A retirement program will be available for eligible teachers. This program will be available only if written notice of interest to retire is provided to the Superintendent on or before October 1st of the final year of employment.

B. District Plan

Eligible teachers who do not qualify for or elect Option 1, above, may elect the District plan, provided all of the following eligibility requirements are met: The Board shall recognize the service of full-time teachers who have rendered a total of at least twelve (12) full-time years of creditable service to District 167 preceding retirement, and who are eligible to receive retirement pension benefits through the regular retirement provisions of the Teachers' Retirement System of the State of Illinois (i.e., excluding those teachers eligible to receive any retirement option under the "Early Retirement Option" provision of Section 16-133.2 of the TRS Illinois Pension Act).

a. Eligibility and Notice:

1. To be eligible the teacher must have served satisfactorily in the District for a minimum of twelve (12) full-time years preceding his or her retirement.
2. The teacher shall provide written notice to the superintendent of his or her intention to retire and participate in the program either four years, three years, two years or one year prior to October 1st of his or her final year of active service. The Board shall approve the request and notify the teacher within sixty (60) days of the receipt of the notice of intention to retire, provided that all conditions of this section are met.
3. The teacher's notice to the Board and the Board's subsequent action on the request shall constitute a commitment by the parties to the terms stated in the notice, which terms shall be reflected in an individual retirement agreement between the teacher and the Board. In the event a teacher revokes his or her retirement notice, the teacher's compensation shall be based on the salary schedule beginning with the school year immediately following revocation. In addition, the teacher shall receive a one-time reduction of 3% for each year of participation in the retirement program. Moreover, the teacher shall no longer be eligible to participate in the Retirement Program under this Section unless the teacher submits satisfactory evidence that the teacher's decision to revoke his or her retirement notice was due to a "life-changing event" as defined by the Internal Revenue Code.

- b. Retirement Benefit: An eligible teacher who submits a timely letter of retirement will be paid a salary increase in each of his/her last year(s) of service equal to six percent (6%) of the amount otherwise due and owing to

ARTICLE VIII RETIREMENT CONTINUED

the teacher above the previous year's TRS creditable earnings (defined as all compensation paid to the teacher, including payment of extracurricular activities, stipends and retirement benefits), inclusive of step and lane movement, up to a maximum of four (4) years prior to retirement, as the case may be. Compensation will be based on a 6% increase of the teacher's base salary from the previous school year and at most a 6% increase in extra duty pay based on the teacher's extra duty pay in the prior year. To be eligible for continued payment for extra-curricular activities or stipends during this period, the teacher must continue to work such activity or stipend.

- c. Limitations on Participation: The District will not, under any circumstances, be responsible for any employee penalties or costs associated with retirement benefits granted under this Agreement. The parties agree that if legislation is enacted or administrative rules adopted during the life of this agreement that adversely affects the Board's obligations or employee rights under any of the benefits set forth in this Article, then the provisions relating to such benefits are null and void, and the parties agree to meet within thirty days of the passage of the legislation to renegotiate the provision and the impact on any and all employees. The parties further agree that if legislation is enacted or administrative rules adopted during the life of this agreement to amend Section 16-158(f) of the Illinois Pension Code [40 ILCS 5/16-158(f)] (i.e., "6% penalty" provision), the parties agree to meet within thirty days of the passage of this legislation to negotiate the impact of such legislation.
- d. Continuation of Plan: No bargaining unit member should rely upon its continuance in a subsequent collective bargaining agreement. Unless the parties agree to continue this Section in a subsequent collective bargaining agreement, the foregoing benefits will be denied to those who heretofore have not applied for regular retirement on or before the expiration of this Agreement.

C. General Limitation on Compensation Increases

Notwithstanding anything to the contrary in this Agreement, the parties agree that any teacher who is within four years of being eligible for either early or regular retirement under the Illinois Pension Code and receives in excess of a 6% aggregate annual increase in TRS creditable earnings that triggers a penalty to TRS that would be paid by the Board, shall not be eligible for the Retirement Program set forth in Section 12.16A.

D. Contribution to Health Insurance Premiums

For each employee who retires under the District's retirement program as described in this Section, the Board will reimburse to the teacher, up to a maximum of \$1,500 per year toward the cost of the Teacher's Retirement System Health Insurance Plan or the insurance plan of the employee's choosing (the employee will provide proof of payment of insurance premiums). The Board's reimbursement obligation hereunder shall be

ARTICLE VIII RETIREMENT CONTINUED

limited to one (1) year of reimbursement for every three (3) years of service to the District, up to a maximum of ten (10) years of reimbursement. This benefit does not carry a right of survivorship if the retired employee dies before either of the above conditions occur.

If a teacher should decide to retire and submits their resignation to the Superintendent in the year previous to retirement by June 1st, accumulated sick leave benefits of \$35.00 a day for unused days minus any days needed to apply for TRS service will be paid to the teacher. The number of days may be at the teacher's discretion. Payment for such sick leave will be made after July 1st after the date of retirement. Payments made pursuant to this paragraph shall be a severance payment made subsequent to receipt of the employee's final paycheck for regular earnings or final day of TRS creditable service, whichever date is later. The employee shall have no actual or constructive right to the receipt of this payment until such time.

ARTICLE IX TEACHER EVALUATION

- A. The parties agree that an objective of teacher evaluation is to improve the quality of instruction. The parties recognize the importance and value of a procedure for assisting and evaluating the progress of all certificated teaching and nursing personnel. The teacher evaluation plan is adopted pursuant to Article 24A of the Illinois School Code (Ill. Rev. Stat ch. 122, par. 24A-1, et seq.).
- B. A teacher will normally be evaluated by the Administrator(s) of his/her assigned attendance center. Only certified school administrators, qualified under Section 24A-3 of the Illinois School Code, holding valid supervisory certificates or their equivalent are permitted to evaluate members of the teaching staff. The administrator(s) will be a legally qualified evaluator prior to beginning such evaluations.
- C. Within four (4) weeks after the beginning of each school term, teachers will be acquainted with teacher evaluation procedures, standards and instruments used to evaluate their performance.
- D. Where the teacher's position involves classroom duties, evaluations must include at least two formal classroom observations of approximately thirty minutes each, at least one of which is a scheduled observation with a pre- and post-conference. The first formal observation must be followed up with a post-conference that includes written feedback with a list of strengths and suggestions for improvement with the teacher within 10 business days. Nothing herein shall preclude the use of informal observations as a basis for evaluation.

Where the teacher's position does not involve classroom duties, observations will include their work with students as is appropriate under their job description.

- E. Tenured teachers will receive a summative evaluation at least once every two years.

Non-tenured teachers will receive a summative evaluation at least twice a year. The first evaluation will take place prior to December 1st and the second evaluation by March 1 of each school year. Failure to comply with the time requirements of the evaluation process will not invalidate the results.

- F. An optional form (Record of Professional Participation) for the purpose of providing the evaluator with information on the teacher's professional participation is available but is not required to be used by the teacher. It is the responsibility of the teacher to complete this form if they desire to provide this information to the evaluator as part of their evaluation.
- G. The evaluator will within ten (10) working days after the final observation provide the final written evaluation and conduct an evaluation conference with the teacher being evaluated. The evaluator is to inform the teacher when the final observation has been completed for each formal evaluation. Following discussion of the evaluation, the evaluation form will be signed and dated by both the administrator and the teacher. Signatures by the teacher will indicate that a conference was held and the evaluation reviewed. It does not necessarily indicate concurrence.

ARTICLE IX TEACHER EVALUATION CONTINUED

- H. If the teacher feels his/her formal written evaluation or a written observation report is incomplete, inaccurate or unjust, he/she may put his/her objections in writing and have them attached to the evaluation report to be placed in his/her personnel file. The teacher will submit objections within fifteen (15) school days of receipt of the evaluation and evaluation conference. A copy signed by both parties will be retained by both parties.
- I. If a tenured teacher is rated “needs improvement”, the evaluator, in consultation with the evaluated teacher, must develop a professional development plan directed to the areas of performance that the tenured teacher needs to improve in accordance with Article 24A of the Illinois School Code (Ill. Rev. Stat ch. 122, par. 24A-1, et seq).
- J. If a teacher is rated “unsatisfactory” and the Board of Education deems the deficiencies to be remediable, the Superintendent and/or his/her designee(s) shall develop a remediation plan in accordance with Article 24A of the Illinois School Code (Ill. Rev. Stat ch. 122, par. 24A-1, et seq).
- K. It is expressly understood between the parties that the only recourse available to a teacher who disagrees with the content of his/her evaluation will be the attachment of a response or, in the case of an unsatisfactory summative rating as outlined in Article IX L, an appeal. Disagreements based on the contents of the evaluation will not be grievable.
- L. If a staff member receives an UNSATISFACTORY summative rating, s/he can file appeal within 5 school days from the date of the culmination of the summative evaluation meeting.
 - 1. The appeal will be filed, in writing, to the Superintendent
 - a. The appeal should include the staff member’s rationale for disagreeing with the rating.
 - b. The rationale should include, though not be limited to, the following:
 - 1) Reference to specific evidence that has been collected through informal and formal observations
 - 2) Dates or elements not consistent with the timelines or processes established in the Brookwood School District 167 Evaluation Guidebook
 - 2. The Summative Rating Appeals Committee will be comprised of four (4) members
 - a. Two Admin members designated by the Superintendent (does not include Superintendent)

ARTICLE IX TEACHER EVALUATION CONTINUED

- b. Two GEA members designated by union president
 - c. Neither the immediate supervisor of the person rated unsatisfactory nor the person rated unsatisfactory can be on the committee
- 3. The committee will be provided all evaluation documents for that evaluation cycle and the employee's letter of appeal.
- 4. The committee will meet to discuss and deliberate over these documents. The committee may vote to call witnesses.
 - a. A tie vote will fall in favor of witnesses
 - b. People who may be interviewed include the immediate supervisor of the person rated "Unsatisfactory," any administrator who collected evidence affecting the rating, the person rated "Unsatisfactory," and anyone who has worked with the teacher who has first-hand knowledge of his/her professional performance.
- 5. Upon conclusion of the interviews (if necessary), the Summative Ratings Appeal Committee will vote by secret ballot to either confirm the "Unsatisfactory" rating or to nullify the "Unsatisfactory" rating.
 - a. A simple majority vote is sufficient
 - b. If the vote is a tie, the Superintendent will cast the deciding vote
 - c. If the committee votes to nullify the rating, the result will be a rating of Proficient for the appealing teacher
- 6. Upon conclusion of the appeals process, a formal letter will be written as an addendum to the summative evaluation that outlines the decision of the appeals process, providing evidence when necessary, and signed by the official designee from both the association and the administration
- 7. The entire appeals process (from the day the appeals process is invoked until a final summative rating is established) will take no more than 15 school days, unless mutually agreed upon between the association and administration.

M. The Brookwood School District 167 Evaluation Guidebook will be made available on a secure site for all teachers.

ARTICLE X TEACHER PROTECTION

- A. The teacher will report to the Principal any case of duty connected assault upon a teacher and in turn it will be promptly reported to the Superintendent and Board President. The teacher will notify the Association President in writing within a reasonable amount of time. Proper law enforcement agencies shall be notified by the teacher when necessary. Procedures to be followed in the event a teacher is assaulted will be established and published in each school's staff handbook. These procedures will be reviewed annually with staff.
- B. In accordance with this Agreement and applicable provisions of the Illinois School Code, the Board will provide indemnification and protection against claims and suits as stated in current School District 167 Personal Liability Policy.
- C. Any complaint related to a specific teacher will be made known to the teacher promptly. The principal (if requested) shall attempt to arrange a Parent-Teacher or Parent-Teacher-Principal conference. If the complaint is to become a matter of record (personnel file), the teacher may request Association representation at any related teacher-administration conference. In the event of a threat, it will be promptly reported to the Superintendent and Board President by the building principal.

ARTICLE XI LEAVES

A. Sick Leave

1. Sick leave will be granted to each teacher on the following basis:

a. One to ten years service in the District	12 days
b. Eleven to nineteen years service in the District	14 days
c. Twenty years plus service in the District	15 days

Such leave may accumulate to an unlimited amount. Sick leave will be interpreted to mean personal illness, quarantine at home, or serious illness or death in the immediate family or household. Sick leave will not be payable during a strike or work stoppage.

Employees who have exhausted their sick leave and who are not on a Family Medical or Child Rearing Leave may submit a letter with supporting documentation to the Superintendent requesting additional leave. This additional leave if granted may result in dock status and may be considered to be an unexcused absence.

2. Thirty-five dollars per day of unused sick leave shall be paid after July 1st after the date of retirement. Sick leave used for TRS service credit will be deducted from the total days allowed for the retirement stipend. For instance: 275 days accumulated sick leave; minus 170 days applied to TRS credit; 105 days unused sick leave times \$35 equals \$3675 paid after July 1st after the date of retirement. Retirement from teaching service must be at age 55 or later to qualify.
3. A full-time teacher forfeits all leave due upon leaving the employ of District 167, except upon retirement. No accumulated leave from employment in any other District may be applied in this District toward the aggregate number of days.
4. Verification by doctor's statement may be requested after an absence of three consecutive days for personal illness or as may be deemed necessary in other cases in accordance with the School Code. Reasonable time will be given to obtain said statement after three consecutive days of personal illness.

B. Personal and/or Emergency Leaves

Each teacher will be granted four (4) personal leave days at full pay per school year for the purpose of attending to legal, personal business, and moral obligations which cannot be attended to at any other time except during school hours. Personal business days may be used as sick days. Except in cases of an emergency, written advance notice of the necessity and reason for personal leave will be submitted two (2) school days prior to date of leave to the Superintendent or his/her designee. In case of emergency, the teacher must provide reason for the leave as soon as possible and in any event, no later than the day he/she returns to duty. Personal leave, except in the case of an emergency, will not be granted the day prior to or after vacation periods, holidays, institute days, nor during the first or last two weeks of the school year or during the week of Thanksgiving except for

ARTICLE XI LEAVES CONTINUED

religious holidays. Every effort will be made to schedule a non-attendance day on the Wednesday prior to Thanksgiving Day. Use of personal days after the end of the year deadline or during the week of Thanksgiving will be considered when intended for special family activities such as graduation, confirmation, christening, wedding, etc. Pre-approval from the Superintendent is required.

Employees who have exhausted their personal business leave and who are not on a Family Medical or Child Rearing Leave may submit a letter with supporting documentation to the Superintendent requesting additional leave. This additional leave if granted may result in dock status and may be considered to be an unexcused absence.

Pre- and post-holiday personal days up to six (6) teachers per day subject to a rotation within the District (based on date of submission) will be honored.

C. Funeral Leave

Funeral leave for death in the immediate family will extend from the day of death through the day of the funeral, plus reasonable travel time if necessary. ("Immediate family" will include parents, spouse, domestic partner, brothers, sisters, children, stepchildren, grandparents, grandchildren, son-in-law, daughter-in-law, parents-in-law, brothers-in-law, sisters-in-law, step in-laws, and legal guardians.) Should there be a need, in any instance, for such leave to exceed five (5) school days, those days in excess of five (5) will be deducted from the teachers' accumulated sick leave. In the event of the death of a child or step-child, an employee, who has previously exhausted his/her sick and personal leave days, may use up to ten (10) unpaid leave days following the use of paid bereavement days. Upon request of the Superintendent, the teacher must present evidence of having attended a funeral utilizing bereavement leave.

If there is a need to attend a funeral of an extended family member, household member, or friend, sick or personal leave may be used.

D. Child Rearing Leave

1. Child rearing leave without pay will be granted to tenured teachers. If a position is not available when a teacher's child rearing leave is over, the leave may be extended on a yearly basis for a maximum of two years. Teachers on child rearing leave may not use sick leave except during periods of employment within School District 167. A tenured teacher returning from child rearing leave will have precedence over the replacement teacher.
2. Any benefits under the provisions of this Agreement which would accrue to a teacher granted child rearing leave will be suspended during the leave of absence; however, any teacher granted child rearing leave who has completed one hundred twenty (120) days or more of work during the school year will be considered to have completed a full year for the purpose of advancement on the salary schedule.

ARTICLE XI LEAVES CONTINUED

3. With the consent of the insurance company, a teacher granted child rearing leave may make arrangements prior to her/his leave to continue hospitalization and surgical insurance, dental and vision coverage as provided in this Agreement at her/his own expense.
4. Child rearing leave will be granted to any tenured teacher who furnished satisfactory evidence of pending adoption proceedings and who informs the Board in writing of her/his intention not less than sixty (60) days prior to the proceedings.
5. Teachers on child rearing leave will retain seniority. A year's seniority will be granted for the year of the leave provided the teacher has completed one hundred twenty (120) days or more of work during the year.
6. Nothing contained herein will limit the right of the Board to grant child rearing leave to a non-tenured teacher at its discretion.
7. Child rearing leave will be subject to the following procedures:
 - a. Application for such leave will be made in writing to the Superintendent or designee at least ninety (90) calendar days prior to the anticipated birth of the child, as verified by a written statement from a physician.
 - b. The teacher and the Superintendent or designee will agree on a plan for the commencement and termination of such leave, taking into consideration maintenance of continuity of instruction and medical factors to the maximum degree possible, and the pertinent time factors related thereto. Every effort will be made to have such leave terminate immediately prior to the start of a new grading period. A leave will commence no later than 1) the actual date of the delivery of the child, 2) the date on which the teacher becomes physically unable to continue regular, full-time employment whichever will first occur except in cases where that date falls during the summer vacation. In such cases, child rearing leave will begin on the first working day of the new school year.
 - c. Child rearing leaves will not be granted for periods of more than one calendar year, except in cases where mutual agreement is reached as in "D2 of this Article, or where extension becomes necessary as in D1" above.
 - d. Teachers on child rearing leave who do not intend to return to regular full-time employment on the date originally determined will so notify the Superintendent at least sixty (60) days prior to the anticipated date of return, if mid year, or ninety (90) days prior to the end of a school term. Such notifications will be in writing.

ARTICLE XI LEAVES CONTINUED

- e. Sick leave will not be applicable during the period of the child rearing leave. Any accumulated sick leave available at the commencement of the leave will be available to the teacher upon return to employment in the District.
- f. Nothing herein will be construed as requiring any teacher to apply for a child rearing leave. A teacher not eligible for or not desiring child rearing leave may utilize accumulated sick leave during any period of disability related to the pregnancy and/or delivery of the child. If such teacher will have exhausted sick leave, he/she will be granted a limited leave of absence without pay or other benefits during such limited periods of disability. Such teacher will return to employment immediately following the termination of such disability.

E. Other Leaves of Absence Without Pay

1. Leave to Teach

A leave of absence of up to two (2) years without pay may be granted to any teacher on tenure for participation in Peace Corps, Teacher Corps, Job Corps as a full-time participant to gain teaching experience in the teaching methods of any other country whose schools are recognized by the Board as valuable sources of information and aid. To qualify for such leave, the teacher will state his/her intention to return to the District.

Credit on the salary schedule will be granted for years experience if the teacher is teaching in his/her field during the approved absence.

2. Advanced Study

Upon application, a leave of absence without pay for the purpose of advanced study of up to two (2) years may be granted to any teacher on tenure who does not qualify for or elect to take a sabbatical leave. The teacher must state his/her intent to return to the school system at least ninety (90) days prior to the end of the School District 167 term of the second year. Upon return from such leave, the teacher will be placed in an appropriate existing lane. It is understood the Administration will not be required to establish new lanes.

3. Public Office

A leave of absence will be granted to any teacher on tenure, upon application for the purpose of serving in a public office to a maximum service for four (4) years. Return from such leave will be subject to the availability of a position and need of the District.

ARTICLE XI LEAVES CONTINUED

4. General Provisions

- a. Each approved leave of absence will be of the shortest possible duration required to meet the purpose of the leave consistent with a reasonable continuity of instruction for students.
- b. Written requests for leaves of absence without pay should be made at least three (3) months before the leave is desired, subject to approval by the Board.
- c. Dates of departure and return must be acceptable to the Administration and determined prior to initiating the request to the Board.
- d. Teachers on approval leaves will retain seniority. A year's seniority will be granted for the year of the leave if more than one hundred twenty (120) days were worked prior to the date of departure.
- e. Teachers on such leave, with the consent of the insurance company, may maintain insurance benefits by making timely payments of all premiums which may be due to the District for any pro rata costs of benefits for which they apply.
- f. Teachers will not advance on the salary schedule while on any approved leave of absence without pay unless working more than one hundred twenty (120) days before the departure. In no event will a teacher be eligible to advance more than one step on the salary schedule upon return from leave.
- g. Teachers on a leave who do not intend to return to regular, full-time employment on the date originally determined will so notify the Superintendent at least sixty (60) days prior to the anticipated date of return, if mid year, or ninety (90) days prior to the end of the school term. Such notification will be in writing. The Board has the option of extending said leave or requesting the teacher's resignation.

F. Sabbatical Leave

Sabbatical leave benefits may be granted to qualified teachers pursuant to the conditions of the School Code of Illinois, Section 24-6.1.

G. Conferences and Workshops

Each teacher may request to attend conferences, meetings, workshops or conventions with full pay budget permitting with the Superintendent's prior approval based on the content of the conference as related to the teacher's assignment or building or District school improvement goals. Reimbursement by the Board of Education will be made of

ARTICLE XI LEAVES CONTINUED

reasonable expenses as submitted by vouchers and account and submitted to the District Superintendent. Each teacher attending such activities will submit a brief written report to the District Superintendent through the building principal within one month. With the prior approval of the Superintendent, teachers attending conferences, meetings, workshops and conventions during the summer months will receive reimbursement by the Board of reasonable expenses submitted to the Superintendent.

H. Duty-Connected Injury

The Board of Education will agree to make payments at normal rates for the first four (4) days for a work-connected injury, unless such first four (4) days are subsequently covered by Worker's Compensation or other insurance provided by District 167. If said first four (4) days lost salary is subsequently reimbursed to the teacher by Worker's Compensation, or said other School District insurance, the teacher will reimburse the School District for the first four (4) days lost time.

I. Witness Duty

The Board will pay the regular salary to staff members called to serve as witnesses or subpoenaed to appear in matters not initiated by the teacher but directly affecting School District 167 before legal and quasi-legal review panels as witnesses, provided any remuneration received for such service is remitted to the Board. Appearance(s) at arbitration hearings is expressly excluded by this section of the contract.

J. Catastrophic Sick Leave Bank

1. Any member of the bargaining unit shall be eligible to participate voluntarily in a "Catastrophic Sick Leave Bank". Such teachers who desire to participate in the Sick Leave Bank shall submit written notice of intent to participate on a provided form. Said notice shall be given to the Sick Leave Bank Committee to administer the provision of said Sick Leave Bank prior to October 1 of each year.
2. Membership in the Bank shall require a teacher to contribute a minimum of one (1) day of accumulated sick leave. Additionally, if the bank becomes depleted during any given school year, the Sick Bank Leave Committee may request each contributing member to donate one (1) additional day to the Bank.
3. A participant may cancel membership by so indicating in writing directed to the attention of the chairperson of the Sick Leave Bank Committee. Cancellation of membership, regardless of reason, shall mean forfeiture of any claim to contributed days and benefits of membership.
4. Authorized withdrawals by participating teachers from the Sick Leave Bank shall be made only upon approval of the majority members of the Sick Leave Bank Committee and their decision shall be final. No one shall draw from the Bank until a doctor's certificate of illness is presented to the committee and to the

ARTICLE XI LEAVES CONTINUED

District, and the participating teacher applying for such withdrawal has, in fact, depleted his or her accumulated sick leave. The doctor's certificate of illness shall indicate the nature, anticipated extent, and duration of the illness. Teachers are eligible for withdrawal from the Bank for only one (1) continuous illness per school year. The Sick Bank Leave Committee may approve up to twenty (20) sick leave days for an approved withdrawal.

5. Three (3) members of the Glenwood Education Association appointed by the President will act as a Sick Leave Bank Committee in all matters that concern the policies and decision of the Sick Leave Bank.
6. The Glenwood Education Association representatives of the Committee shall compile a roster of participating teachers, also indicating the number of days contributed by each teacher and shall submit information to the administration no later than October 15. The administration will deduct any contributed days from the official sick leave accumulated record of the contributing member by October 31. The representatives of the Committee shall also report the specifics of any withdrawals to the administration.
7. Any member who is receiving disability benefits from the Teacher's Retirement System, Social Security Administration, Veteran's Administration, or is absent from illness or injury due to a work-related accident (which is compensable under the Illinois Workers Compensation Act), may not avail himself/herself of any benefits of the Bank.
8. The Glenwood Education Association agrees to indemnify, and save and hold harmless, the Board of Education from any and all liability, costs, attorneys' fees or damages suffered by the Board as a result of any litigation, arbitration, or administrative agency proceeding, which might arise as a result of this Article.
9. Any dispute, which arises as to the administration of this Section, shall be non-grievable.
10. In the event that sick leave bank is terminated by action of the District and the Union, the available days will be prorated to contributing members of the Bank, except that no employee may receive more than the total number of days the employee contributed to the Bank.

K. Jury Duty Leave

The Board will pay the regular salary to employees called for jury duty.

L. Military Leave

An employee shall be granted leave from his/her employment for any period actively spent in military service in the United States Armed Forces or service in the Illinois

ARTICLE XI LEAVES CONTINUED

National Guard as required by state and federal law. The employee shall continue to receive benefits and compensation during such leave as required by state and federal law. An employee hired to replace an employee on military leave shall not accrue contractual continued service rights.

M. Family and Medical Leave Act

Employees of Brookwood School District 167 are entitled to leave according to the terms of the Family and Medical Leave Act. It is not the intent of the parties to in any way limit, diminish, or reduce guarantees or privileges provided by the Family and Medical Leave Act.

1. Definitions – as used in this Section:

- a. Employee means a person who has been employed with Brookwood School District 167 for at least twelve months from date of hire.
- b. For the purpose of FMLA, year will be defined as the insurance year which begins October 1 and ends September 30.
- c. For the purpose of FMLA, “serious health condition” means an illness, injury, impairment, or physical or mental condition that involves:
 - 1) Inpatient Care – any period of incapacity or treatment in connection with or consequent to inpatient care (an overnight stay) in a hospital, hospice, or residential medical care facility.
 - 2) Any period requiring absence from work of more than three calendar days, which involves “continuing treatment” by (or under the supervision of) a health care provider.
 - 3) Continuing treatment by (or under the supervision of) a health care provider for a chronic or long-term health condition that is incurable or so serious that, if not treated, would likely result in a period of incapacity of more than three calendar days.
 - 4) “Continuing treatment by a health care provider” means: a) The employee or family member in question is treated two or more times for the injury or illness by a health care provider. b) The employee or family member is treated two or more times by a provider of health care services under order of, or under the supervision of, a health care provider. c) The employee or family member is under the continuing supervision of, but not necessarily being actively treated by, a health care provider due to serious long-term or chronic condition or disability which cannot be cured.

ARTICLE XI LEAVES CONTINUED

- 5) If doubts about the validity that a serious health condition exists, the employer may require a second opinion at the employer's expense. If a second opinion does not agree, employer can require a third opinion at employer's expense. The third opinion shall be final and binding. The third health care provider shall be jointly approved by employer and employee.
 - 6) To care for the employee's spouse, child, parent (excluding in-laws), or next of kin (as defined by the Family Medical Leave Act regulations) who is a covered servicemember with a serious injury or illness. A "covered servicemember" is a member of the Armed Forces, including a member of the National Guard or Reserves, who has a serious injury or illness incurred in the line of duty for which he or she is undergoing medical treatment, recuperations, or therapy, is otherwise in outpatient status, or is otherwise on the temporary disability retired list. Employees may not take leave for former servicemembers and members on the permanent disability retirement list.
- d. For the purposes of FMLA, academic term means the school semester. The school year may not have more than two terms or semesters.
 - e. Other terms shall be defined as delineated in the Family and Medical Leave Act (P.L. 103-3) and rules and regulations as promulgated by the United States Department of Labor.

2. Purposes –

Eligible employees shall be granted leave during any year for one or more of the following reasons:

- a. the birth of a child;
- b. the adoption of a child or the placement of a foster child;
- c. to care for a spouse, son, daughter, or parent who has serious health conditions;
- d. a serious health condition that makes the employee unable to perform his/her job; and
- e. a covered servicemember with a serious injury or illness.

3. Duration –

Leaves requested for the purposes listed above shall be granted for a period of twelve (12) weeks per year as defined by law unless a leave of shorter duration is requested by the eligible employee or unless the employee is entitled to a leave of longer duration under the terms of this agreement.

ARTICLE XI LEAVES CONTINUED

Leave resulting from a serious health condition may be taken intermittently or on a reduced leave schedule when medically necessary.

Employees may, but shall not be required to, use paid sick leave and/or personal leave days during the period of a leave taken under the Family and Medical Leave Act as per GEA, Article X.

4. Notification –

In any case in which the necessity for leave under sub-paragraphs 2 a) or b) is based upon an expected birth or placement, the eligible employee shall provide in writing to the Superintendent at least thirty (30) days notice before the date the leave is to begin, of the employee's intention to take leave under such sub-paragraphs. Where due to unforeseen circumstances such notice is not practicable, said employee shall provide as early a notice as practicable.

In any case in which the necessity for leave under sub-paragraphs 2 c) or d) is based upon illness or a serious health condition, the eligible employee shall make every reasonable effort to schedule the treatment so as not to disrupt unduly the operations of the District. Treatment may also be subject to the health care provider's calendar and schedule.

5. End of Academic Term –

If an eligible employee begins leave:

- a. more than five (5) weeks prior to the end of an academic term, the Superintendent can require the leave to extend to the end of the academic term if the leave is of at least three (3) weeks and the return to employment would occur within three (3) weeks of the end of the academic term.
- b. five (5) weeks or fewer prior to the end of the academic term but not less than three (3) weeks prior to the end of the academic term, the Superintendent can require the leave to extend to the end of the academic term if the leave is of at least two (2) weeks and the return to employment would occur within two (2) weeks of the end of the academic term;
- c. less than three (3) weeks prior to the end of the academic term the Superintendent can require the leave to extend to the end of the term if it is greater than five (5) working days.

6. Repealer –

In the event the Family and Medical Leave Act is repealed, then this Article shall, as of the date of repeal, no longer be in force and effect.

ARTICLE XI LEAVES CONTINUED

7. Modifications –

Should standards established by FMLA be modified, it is the intent of the parties that this Agreement shall contain no provisions less comprehensive than those originally agreed to.

Any full-time employee of Brookwood School District 167 after his/her first year of employment may apply for and shall receive an unpaid leave for up to 12 weeks during any 12 month period. Insurance benefits enjoyed by the employee as per GEA contract shall remain in effect throughout the term of such leave and premiums for such will be paid for by Brookwood School District 167.

ARTICLE XII REDUCTION IN FORCE

- A. When the Board of Education deems it necessary to reduce the number of teachers in the District because of reasons such as but not limited to declining enrollments, inadequate finances, the elimination of programs, or consolidation, Reduction in Force will be in accordance with Section 24-12 of the Illinois School Code, as amended.

ARTICLE XIII PUPIL DISCIPLINE

- A. The parties agree that the employee has the primary responsibility for maintenance of discipline within the classroom. The administration, however, recognizes its responsibility under board policy to assist the employee in maintenance of student discipline. The parties agree to follow the requirements set forth by the *Illinois School Code* (105 ILCS 5/10.22.6, 5/14-8.02, 5/14-8.05, 5/24-24), *The Individuals with Disabilities Education Improvement Act of 2004* (20 U.S.C. §1415 (k)), *the Americans with Disabilities Act* (42 U.S.C. §12101, et seq.), *the Rehabilitation Act of 1973* (29 U.S.C. §794), and their implementing regulations regarding matters relating to student discipline. Employees may confer with the building principal regarding student discipline procedures.

- B. The administration shall comply with the confidentially requirements of the *Illinois School Student Records Act* (105 ILCS 10/1 et seq.), the *Family Educational Rights and Privacy Act* (20 U.S.C. §1232 (g)), and the *Individuals with Disabilities Education Act* (20 U.S.C. §1401 et seq.) when disciplining students, but will involve the staff to the extent permitted by the law. All communications will be held confidential. Teachers, necessary staff, and parents/guardians shall participate in the creation of school safety plans.

ARTICLE XIV GRIEVANCE PROCEDURES

A. Definition

1. A grievance will mean a complaint by a teacher, a group of teachers, or the Association that there has been an alleged violation, misinterpretation, or misapplication of any provision of this Agreement.

B. Purpose

1. The primary purpose of the grievance procedure set forth in this article is to secure at the earliest time and at the lowest level possible, equitable solutions to the problems of the parties. By mutual agreement in writing, the time limits listed may be changed.

C. Procedure

1. Representation. Any teacher has a right to be represented in the grievance procedure by the Association. The teacher will be present at any grievance discussion if he/she desires or when the Administration and/or the Association deems it necessary. When the presence of a teacher or administrator at a grievance hearing is requested by either party, illness or incapacity of the teacher or administrator will be grounds for any necessary extension of grievance procedure time limits.
2. First Step. After making the grievance known to the Association Grievance Committee, an attempt will be made to resolve any grievance in informal, verbal discussion between complaint and his/her immediate supervisor.
3. Second Step. If grievance cannot be resolved informally, the aggrieved teacher or the Association will file the grievance in writing. The filing of the grievance at the second step must be within fifteen (15) working days from the date of the occurrence of the event giving rise to the grievance. Within ten (10) working days from the time of filing step two, the Superintendent or his designee will, at a mutually agreeable time, discuss the matter with the aggrieved teacher in the presence of an Association representative, if so desired, with the objective of resolving the matter. The Superintendent or his designee will make a decision and communicate it, including reasons for the decision, to the teacher, to the Association President within ten (10) working days following the conference in step two. In any instance where the Association is not represented in the grievance procedure, the Association will be notified of the final disposition of the grievance which disposition will not be in conflict with any of the terms or conditions of this Agreement.
4. Third Step. If the grievance is not resolved satisfactorily to the aggrieved and the Association within five (5) working days after consideration by the Superintendent, there will be available a Third Step of impartial arbitration. The Association, or the aggrieved and the Association, may submit in writing, a request to enter into such arbitration. The arbitration proceeding will be conducted by an arbitrator to be selected by the two parties within seven (7) working days after said notice is given. If the two parties fail to reach agreement on an arbitrator within seven (7) working days,

ARTICLE XIV GRIEVANCE PROCEDURES CONTINUED

the American Arbitration Association will be requested to provide a panel, that is acceptable to both parties, of seven (7) arbitrators. After determining by chance which party will strike the first name, each of the two parties will alternately strike one name at a time from the acceptable panel until only one will remain. The remaining name will be the arbitrator. The decision of the arbitrator will be binding on the parties. If a request for arbitration is not filed within thirty (30) days of the date of the Step Two answer, then the grievance will be deemed withdrawn.

5. Expenses for the arbitrator's services and the expenses which are common to both parties in the arbitration will be borne equally the Board and the Association. Each party to any arbitration proceeding will be responsible for compensating its own representatives and witnesses.
6. The arbitrator, in his opinion, will not amend, modify, nullify, ignore, or add to the provisions of this Agreement. His authority will be strictly limited to deciding only the issue or issues presented to him in writing by the Board and the Association and his decision must be based solely upon his interpretation of the meaning or application of the express relevant language of the Agreement.

ARTICLE XV COMPENSATION – PAYROLL PROCEDURES –
FRINGE BENEFITS - REIMBURSEMENT

A. Payroll Procedure

Teachers will have the option of receiving their pay on a 22 or 26 payment schedule. This choice must be made at the beginning of the school year or within two weeks of employment. It cannot be changed until the start of the next school year. Regular pay days shall be every other Friday except when during the school term, school is not in session, teachers will receive their checks on the last day school is in session that particular pay period. During the summer months, checks may be picked up by the teacher on the designated pay day or mailed to an address designated by the teacher. Subject to the approval of the Superintendent a teacher who elects the twenty-six (26) payment schedule may receive all remaining monies due on June 30th.

B. Fringe Benefits

The Board will pay 85% of the premium rate of single health coverage and 75% of the premium rate of family health coverage for all plans offered.

The Board will conduct on-site health screening(s) during the first 45 calendar days of each school year. The Board will pay for the cost of the health screening for participants who are enrolled in the health insurance plan at the time of the screening.

For teachers who participate in this health screening each year and if applicable covered spouses at the time of the screening, the Board will pay 90% of the premium rate of single health coverage and 80% of the premium rate of family health coverage. For teachers with family coverage, spouses if applicable must participate in order to receive the higher Board contribution levels. Status of all covered members at the end of open enrollment will determine who shall participate in the screening.

If a teacher or spouse is/are unable to participate in the health screenings when they are held onsite, the teacher or spouse will have until October 31 to obtain a screening at one of the screening company's alternate locations. Failure to obtain a screening by October 31 will result in higher premium costs for the employee as listed above, retroactive to the start of the insurance year (currently September 1 each year).

Refer to the insurance carrier's group benefit book for specific details of insurance coverage.

Further scrutiny of insurance plans will continue with mutual agreement necessary for changes.

1. The Board will pay 75% of the premium cost of single group dental insurance coverage for each teacher whether single or family coverage is selected.

Refer to the dental carrier's group benefit plan book for specific details of dental coverage.

ARTICLE XV COMPENSATION – PAYROLL PROCEDURES –
FRINGE BENEFITS – REIMBURSEMENT CONTINUED

2. The Board will provide term life insurance of \$30,000 for each teacher who works at least half-time and will afford each teacher the opportunity to purchase additional life insurance at group rates with the approval of the carrier.
 3. Teachers who work less than full-time, but at least half-time, will receive fringe benefits (personal leave, insurance) in proportion to their contract time (half-time will be 18 $\frac{3}{4}$ hours per week).
- C. Teachers who use their own automobiles for District business or for required travel between buildings will be reimbursed at the maximum rate allowed by the Internal Revenue Service.
- D. Teachers shall be compensated in accordance with the salary schedule which is incorporated herein.
- E. Further scrutiny of insurance plans will continue with mutual agreement necessary for changes. Mutual agreement of District employees and the Board of Education is necessary for any changes to the health and dental insurance plans.
- a. An insurance advisory committee representing all District employees under the District's insurance plan will be appointed by the Board or designee of the Board and Glenwood Education Association and Unified Staff Association.
 - b. This group will establish a regular meeting schedule not less than twice a year. The purpose of the committee is 1) to provide assistance to District employees who are experiencing problems with the District's insurance program, 2) to study other options regarding insurance coverage (health, major medical, life, dental, etc.) that may affect members of the bargaining group, and 3) to advise the Administration and Associations regarding insurance coverage.
 - c. All recommendations of this committee shall be forwarded to the Board and Administration for consideration of adoption and must be agreed to by all parties prior to implementation. It is understood that the recommendations from the insurance advisory committee are advisory in nature.

ARTICLE XVI TUITION REIMBURSEMENT

The Board shall establish a fund of \$16,800 annually for tuition reimbursement. Tuition reimbursement will be paid at the current credit hour rate at Governors State University to any teacher who obtains the written approval of the Superintendent or his/her designee for graduate course work prior to the first day of class for each course and receives a grade of A or B. Any unused funds from the \$16,800 tuition reimbursement set aside annually by the Board shall be rolled over into that fund up to a total of \$33,600. Annual reimbursement per teacher shall be limited to \$4,200. Any course taken must be applicable to the advancement of the teacher's role within Brookwood School District 167 unless it is a course that is part of an approved course of study in pursuit of an advanced degree or taken for other certifications. Individual courses will be paid only one time per teacher. District responsibilities take precedence over coursework. Exceptions may be granted in extenuating circumstances.

To be eligible for tuition reimbursement, a teacher must be employed in Brookwood School District 167 the school year following the school year or summer that the course/courses were taken. A person who is on leave of absence will not be reimbursed until they return to work in Brookwood School District 167.

Reimbursement shall be paid in October upon presenting transcripts or a grade report to the Superintendent's Office showing the course completed with a grade of B or better and a paid receipt showing actual tuition paid. In the case of an ungraded course, a "pass" designation must be obtained. Should the total amount of reimbursement exceed the fund established, then an equal prorated amount will be paid to those meeting the requirements for reimbursement.

Failure to submit the request for reimbursement by September 30 will result in the ineligibility of the teacher to receive reimbursement. Extensions may be granted in extenuating circumstances.

ARTICLE XVII EXTRA DUTY POSITIONS AND EXTENDED CONTRACTS

- A. Teachers will be compensated for extra duties, professional and/or supervisory, beyond the regular school day. Assigned extra duties will be compensated at an hourly rate of \$34 for the 2021-2022 school year and \$35 for the 2022-2023 and 2023-2024 school years.
- B. Efforts will be made to seek volunteers District-wide to fill extra duty assignments. When volunteers are not available the administration will appoint personnel as necessary.
- C. Teachers will receive consideration for summer employment including, but not limited to custodial and/or clerical work. These people will be paid at the prevailing rate for said jobs.
- D. Compensation paid to teachers so employed will be as listed in Appendix D.

ARTICLE XVIII DURATION AND RELATED TECHNICAL CLAUSES

A. Duration

This Agreement will become effective on July 1, 2021 and continue in effect until June 30, 2024.

B. No-Strike

During the term of this Agreement, the Association or individual Association member will not conduct any withholding of services or concerted action of a strike, slow down, mass sick call or impose a duty or obligation upon any member to conduct, assist or participate in a strike or any of the above mentioned actions.

C. Complete Understanding

The terms and conditions set forth in this Agreement represent the full and complete understanding between the parties. It is understood that all rights, powers, and authority of the Board and/or its administrative staff not specifically limited by the language of this Agreement are retained by the Board. The Board, however, will not take any action which will violate any of the specific provision of this Agreement.

D. Recognition of this Agreement

This Agreement supersedes and nullifies all previous written and verbal negotiation agreements between the Board and the Association.

E. Effect of Agreement

The parties acknowledge that during the negotiations which resulted in this Agreement and its appendices, each had the unlimited right and opportunity to make demands and proposal with respect to any matter or subject not removed by law or by specific agreement of the parties from the area of collective bargaining, and that the understanding and agreements arrived at by the parties after the exercise of that right are set forth in this Agreement. Therefore, the Board and the Association for the life of this Agreement, each voluntarily and unqualifiedly, waives any right which might otherwise exist under law, practice, or custom to negotiate any further agreements effective for or during the term of this Agreement.

F. Individual Contracts

Terms and conditions of this Agreement will be reflected in individual contracts issued to newly employed and non-tenured teachers.

ARTICLE XVIII **DURATION AND RELATED TECHNICAL CLAUSES**
CONTINUED

G. Separability

Should any article, section, or clause of this Agreement be declared illegal by a court of competent jurisdiction, then that part will be deleted from this Agreement to the extent that it violates the law. The remaining articles, sections, and clauses will remain in effect. Should any additional modification or change be made in this Agreement, it will be necessary that the parties mutually agree in writing.

APPENDIX A – SALARY SCHEDULE 2021-22

Step + 2%

FY 22 Teachers Salary Schedule		LANE				
		BA	BA +15	MA	MA +15	MA +30
-	A	\$42,566.64	\$43,202.10	\$44,474.04	\$45,109.50	\$45,747.00
-	B	\$43,093.98	\$43,737.60	\$45,026.88	\$45,669.48	\$46,315.14
-	C	\$43,628.46	\$44,280.24	\$45,585.84	\$46,236.60	\$46,889.40
-	D	\$44,169.06	\$44,830.02	\$46,151.94	\$46,810.86	\$47,472.84
-	E	\$44,716.80	\$45,384.90	\$46,725.18	\$47,392.26	\$48,062.40
-	F	\$45,027.90	\$45,691.92	\$47,020.98	\$47,683.98	\$48,349.02
-	G	\$46,033.62	\$46,713.96	\$48,078.72	\$48,760.08	\$49,441.44
-	H	\$47,062.80	\$47,763.54	\$49,165.02	\$49,865.76	\$50,565.48
-	I	\$48,122.58	\$48,842.70	\$50,281.92	\$51,001.02	\$51,721.14
-	J	\$49,211.94	\$49,949.40	\$51,426.36	\$52,166.88	\$52,903.32
-	K	\$50,329.86	\$51,088.74	\$52,604.46	\$53,364.36	\$54,123.24
-	L	\$51,474.30	\$52,255.62	\$53,813.16	\$54,593.46	\$55,370.70
-	M	\$52,652.40	\$53,454.12	\$55,054.50	\$55,854.18	\$56,655.90
STEP	N	\$53,861.10	\$54,685.26	\$56,329.50	\$57,149.58	\$57,970.68
-	O	\$55,106.52	\$55,952.10	\$57,640.20	\$58,482.72	\$59,325.24
-	P	\$56,383.56	\$57,251.58	\$58,984.56	\$59,849.52	\$60,718.56
-	Q	\$57,692.22	\$58,582.68	\$60,363.60	\$61,254.06	\$62,145.54
-	R	\$59,039.64	\$59,952.54	\$61,782.42	\$62,696.34	\$63,611.28
-	S	\$60,421.74	\$61,361.16	\$63,240.00	\$64,177.38	\$65,116.80
-	T	\$61,843.62	\$62,806.50	\$64,734.30	\$65,700.24	\$66,663.12
-	U	-	\$64,290.60	\$66,272.46	\$67,260.84	\$68,252.28
-	V	-	\$65,815.50	\$67,847.34	\$68,866.32	\$69,882.24
-	W	-	\$67,380.18	\$69,470.16	\$70,513.62	\$71,558.10
-	X	-	\$68,987.70	\$71,134.80	\$72,205.80	\$73,278.84
-	Y	-	\$70,640.10	\$72,843.30	\$73,943.88	\$75,045.48
-	Z	-	-	\$74,435.52	\$75,538.14	\$76,641.78
-	AA	-	-	\$76,030.80	\$77,133.42	\$78,234.00
-	BB	-	-	\$77,624.04	\$78,727.68	\$79,828.26
-	CC	-	-	\$79,218.30	\$80,319.90	\$81,424.56
-	DD	-	-	\$80,812.56	\$81,912.12	\$83,017.80
-	EE	-	-	\$82,405.80	\$83,508.42	\$84,610.02
-	FF	-	-	\$84,001.08	\$85,102.68	\$86,205.30
-	GG	-	-	\$85,594.32	\$86,695.92	\$87,798.54
-	III	-	-	\$87,187.56	\$88,289.16	\$89,392.80
-	II	-	-	\$88,782.84	\$89,884.44	\$90,986.04

Longevity Increase – A teacher who is repeating the maximum step of any lane of the salary schedule shall have his/her salary increased 2%. A teacher who has obtained the National Board Teaching Certification shall have his/her salary increased by \$1,000 from the above salary schedule. _____

APPENDIX B – SALARY SCHEDULE 2022-23

Step + 2%

FY 23

Teachers

Salary Schedule

		LANE				
		BA	BA +15	MA	MA +15	MA +30
STEP	A	\$43,417.97	\$44,066.14	\$45,363.52	\$46,011.69	\$46,661.94
	B	\$43,955.86	\$44,612.35	\$45,927.42	\$46,582.87	\$47,241.44
	C	\$44,501.03	\$45,165.84	\$46,497.56	\$47,161.33	\$47,827.19
	D	\$45,052.44	\$45,726.62	\$47,074.98	\$47,747.08	\$48,422.30
	E	\$45,611.14	\$46,292.60	\$47,659.68	\$48,340.11	\$49,023.65
	F	\$45,928.46	\$46,605.76	\$47,961.40	\$48,637.66	\$49,316.00
	G	\$46,954.29	\$47,648.24	\$49,040.29	\$49,735.28	\$50,430.27
	H	\$48,004.06	\$48,718.81	\$50,148.32	\$50,863.08	\$51,576.79
	I	\$49,085.03	\$49,819.55	\$51,287.56	\$52,021.04	\$52,755.56
	J	\$50,196.18	\$50,948.39	\$52,454.89	\$53,210.22	\$53,961.39
	K	\$51,336.46	\$52,110.51	\$53,656.55	\$54,431.65	\$55,205.70
	L	\$52,503.79	\$53,300.73	\$54,889.42	\$55,685.33	\$56,478.11
	M	\$53,705.45	\$54,523.20	\$56,155.59	\$56,971.26	\$57,789.02
	N	\$54,938.32	\$55,778.97	\$57,456.09	\$58,292.57	\$59,130.09
	O	\$56,208.65	\$57,071.14	\$58,793.00	\$59,652.37	\$60,511.74
	P	\$57,511.23	\$58,396.61	\$60,164.25	\$61,046.51	\$61,932.93
	Q	\$58,846.06	\$59,754.33	\$61,570.87	\$62,479.14	\$63,388.45
	R	\$60,220.43	\$61,151.59	\$63,018.07	\$63,950.27	\$64,883.51
	S	\$61,630.17	\$62,588.38	\$64,504.80	\$65,460.93	\$66,419.14
	T	\$63,080.49	\$64,062.63	\$66,028.99	\$67,014.24	\$67,996.38
	U		\$65,576.41	\$67,597.91	\$68,606.06	\$69,617.33
	V		\$67,131.81	\$69,204.29	\$70,243.65	\$71,279.88
	W		\$68,727.78	\$70,859.56	\$71,923.89	\$72,989.26
	X		\$70,367.45	\$72,557.50	\$73,649.92	\$74,744.42
	Y		\$72,052.90	\$74,300.17	\$75,422.76	\$76,546.39
	Z			\$75,924.23	\$77,048.90	\$78,174.62
	AA			\$77,551.42	\$78,676.09	\$79,798.68
	BB			\$79,176.52	\$80,302.23	\$81,424.83
	CC			\$80,802.67	\$81,926.30	\$83,053.05
	DD			\$82,428.81	\$83,550.36	\$84,678.16
	EE			\$84,053.92	\$85,178.59	\$86,302.22
	FF			\$85,681.10	\$86,804.73	\$87,929.41
	GG			\$87,306.21	\$88,429.84	\$89,554.51
	HH			\$88,931.31	\$90,054.94	\$91,180.66
	II			\$90,558.50	\$91,682.13	\$92,805.76

Longevity Increase – A teacher who is repeating the maximum step of any lane of the salary schedule shall have his/her salary increased 2%. A teacher who has obtained the National Board Teaching Certification shall have his/her salary increased by \$1,000 from the above salary schedule.

APPENDIX C – SALARY SCHEDULE 2023-2024

Step + 2%

FY 24 Teachers Salary Schedule		LANE				
		BA	BA +15	MA	MA +15	MA +30
STEP	A	\$44,286.33	\$44,947.46	\$46,270.79	\$46,931.92	\$47,595.18
	B	\$44,834.98	\$45,504.60	\$46,845.97	\$47,514.53	\$48,186.27
	C	\$45,391.05	\$46,069.16	\$47,427.51	\$48,104.56	\$48,783.73
	D	\$45,953.49	\$46,641.15	\$48,016.48	\$48,702.02	\$49,390.74
	E	\$46,523.36	\$47,218.45	\$48,612.88	\$49,306.91	\$50,004.12
	F	\$46,847.03	\$47,537.87	\$48,920.63	\$49,610.41	\$50,302.32
	G	\$47,893.38	\$48,601.20	\$50,021.10	\$50,729.99	\$51,438.87
	H	\$48,964.14	\$49,693.19	\$51,151.29	\$51,880.34	\$52,608.33
	I	\$50,066.73	\$50,815.95	\$52,313.31	\$53,061.46	\$53,810.67
	J	\$51,200.10	\$51,967.36	\$53,503.98	\$54,274.42	\$55,040.61
	K	\$52,363.19	\$53,152.73	\$54,729.68	\$55,520.28	\$56,309.82
	L	\$53,553.86	\$54,366.75	\$55,987.21	\$56,799.04	\$57,607.68
	M	\$54,779.56	\$55,613.67	\$57,278.70	\$58,110.69	\$58,944.80
	N	\$56,037.09	\$56,894.54	\$58,605.21	\$59,458.42	\$60,312.70
	O	\$57,332.82	\$58,212.56	\$59,968.86	\$60,845.42	\$61,721.98
	P	\$58,661.46	\$59,564.54	\$61,367.54	\$62,267.44	\$63,171.59
	Q	\$60,022.99	\$60,949.42	\$62,802.29	\$63,728.72	\$64,656.22
	R	\$61,424.84	\$62,374.62	\$64,278.43	\$65,229.27	\$66,181.18
	S	\$62,862.78	\$63,840.15	\$65,794.90	\$66,770.15	\$67,747.52
	T	\$64,342.10	\$65,343.88	\$67,349.57	\$68,354.53	\$69,356.31
	U		\$66,887.94	\$68,949.87	\$69,978.18	\$71,009.67
	V		\$68,474.45	\$70,588.37	\$71,648.52	\$72,705.48
	W		\$70,102.34	\$72,276.75	\$73,362.37	\$74,449.05
	X		\$71,774.80	\$74,008.65	\$75,122.91	\$76,239.31
	Y		\$73,493.96	\$75,786.17	\$76,931.21	\$78,077.32
	Z			\$77,442.72	\$78,589.88	\$79,738.11
	AA			\$79,102.44	\$80,249.61	\$81,394.65
	BB			\$80,760.05	\$81,908.28	\$83,053.32
	CC			\$82,418.72	\$83,564.82	\$84,714.11
	DD			\$84,077.39	\$85,221.37	\$86,371.72
	EE			\$85,734.99	\$86,882.16	\$88,028.26
	FF			\$87,394.72	\$88,540.83	\$89,687.99
	GG			\$89,052.33	\$90,198.44	\$91,345.60
	HH			\$90,709.94	\$91,856.04	\$93,004.27
	II			\$92,369.67	\$93,515.77	\$94,661.88

Longevity Increase – A teacher who is repeating the maximum step of any lane of the salary schedule shall have his/her salary increased 2%. A teacher who has obtained the National Board Teaching Certification shall have his/her salary increased by \$1,000 from the above salary schedule.

APPENDIX D

EXTRA DUTY COMPENSATION
FY 2021 – FY 2024

3% increases for each year of the contract

Athletics	2021-2022	2022-2023	2023-2024
Boys Basketball Coach	\$3,009	\$3,099	\$3,192
Girls Basketball Coach	\$3,009	\$3,099	\$3,192
Boys Volleyball Coach	\$3,009	\$3,099	\$3,192
Girls Volleyball Coach	\$3,009	\$3,099	\$3,192
Boys Cross Country Coach	\$931	\$959	\$988
Girls Cross Country Coach	\$931	\$959	\$988
Boys Track Coach	\$1,312	\$1,352	\$1,392
Girls Track Coach	\$1,312	\$1,352	\$1,392
Boys Basketball Assistant	\$2,257	\$2,324	\$2,394
Girls Basketball Assistant	\$2,257	\$2,324	\$2,394
Boys Volleyball Assistant	\$2,257	\$2,324	\$2,394
Girls Volleyball Assistant	\$2,257	\$2,324	\$2,394
Boys Track Assistant	\$981	\$1,011	\$1,041
Girls Track Assistant	\$981	\$1,011	\$1,041
Intramurals	\$2,257	\$2,324	\$2,394
Boys/Girls Wrestling Coach	\$3,009	\$3,099	\$3,192
Boys/Girls Wrestling Assistant	\$2,257	\$2,324	\$2,394
Cheerleading Coach	\$2,162	\$2,227	\$2,294
Cheerleading Assistant	\$1,622	\$1,671	\$1,721
(Assistants receive 75% of the coach's compensation)			

Activities			
Student Council	\$1,731	\$1,783	\$1,837
One Hour Per Week for 25 weeks	\$866	\$892	\$918
Two Hours Per Week for 25 weeks	\$1,731	\$1,783	\$1,837
Family Night Coordinator	\$170	\$175	\$180
Choral/Instrumental Music			
Hour Practice 1x per Week for 25 weeks	\$866	\$892	\$918
Hour Practice 2x per Week for 25 weeks	\$1,731	\$1,783	\$1,837
Hour Practice 3x per Week for 25 weeks	\$2,597	\$2,675	\$2,755
(Compensation will be prorated for less/more days per week)			
Choral/Band Program per Performance	\$170	\$175	\$180
Junior High/BMS Musical	\$1,731	\$1,783	\$1,837
(tryouts, practice, and evening performance)			

FOR THE GLENWOOD EDUCATION
ASSOCIATION:

Mary E. Baxer
PRESIDENT OF THE UNION

Date: 7-16-21

FOR THE SCHOOL DISTRICT:

Betty A. Lindsay
SUPERINTENDENT OF SCHOOLS

Date: 7-9-21

